

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ANNMARIE JOHN-HUGGINS,

Plaintiff,

-against-

THE CITY OF NEW YORK; P.O. CHRISTIAN
VILLACIS, (SHIELD # 05464); P.O. JANE DOE #1-2,
and P.O. JOHN DOE #1-17, the individual defendants sued
in their individual and official capacities,

Defendants.
----- X

Index. No.

Purchased _____

Plaintiff designates Kings County as the
place of trial

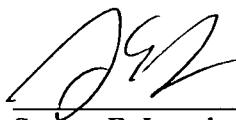
The basis of the venue is where the tort
arose and where plaintiffs reside

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to
serve a copy of your answer, or if the complaint is not served with this summons, to serve
a notice of appearance, on the plaintiffs' attorneys within 20 days after the service of this
summons, exclusive of the day of service (or within 30 days after the service is complete
if this summons is not personally delivered to you within the State of New York); and in
case of your failure to appear or answer, judgment will be taken against you by default
for the relief demanded in the complaint.

Dated: New York, New York
July 24, 2018



Steven E. Lynch, Esq.

Attorney for Plaintiff

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ANNMARIE JOHN-HUGGINS,

Index. No.

Plaintiff,

VERIFIED COMPLAINT

-against-

Basis of Venue occurrence of
incident: 590 Parkside Avenue,
Brooklyn, New YorkTHE CITY OF NEW YORK; P.O. CHRISTIAN
VILLACIS, (SHIELD # 05464); P.O. JANE DOE #1-2,
and P.O. JOHN DOE #1-17, the individual defendants sued
in their individual and official capacities,

Defendants.

----- x

ANNMARIE JOHN-HUGGINS, by her attorney, Steven E. Lynch, Esq., for her
complaint alleges as follows:

1. This is a civil rights, common law, and tort action in which Plaintiff Annmarie John-Huggins seeks relief for the violation of her rights secured by the laws of the State of New York, the New York State Constitution, Title 42 U.S.C. Section 1983; and the Fourth and Fourteenth Amendments to the United States Constitution.
2. Plaintiff's claims arise from an incident that occurred on or about April 28, 2017. During the incident, the City of New York, P.O. CHRISTIAN VILLACIS, (SHIELD # 05464); P.O. JANE DOE #1-2, and P.O. JOHN DOE #1-17, of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, unlawful search and seizure, false arrest, false imprisonment, and respondeat superior liability.
3. Plaintiff seeks compensatory and punitive damages from the individual defendants, compensatory damages from the municipal defendant, declaratory relief, an award of

costs, attorney's fees pursuant to 42 U.S.C. § 1988, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

4. Within ninety (90) days of the incident alleged in this complaint, plaintiff served upon Defendant City of New York a Notice of Claim setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than thirty (30) days have elapsed since plaintiff's demands and/or claims were presented to Defendant City of New York for adjustment and/or payment thereof, and the defendant has neglected and/or refused to make any adjustment and/or payment.

6. This action is being commenced within one year and ninety days of the date of the occurrence herein.

7. A 50-h Hearing was conducted on September 26, 2017.

8. Venue is proper in the Supreme Court of the State of New York, Kings County, because the acts in question occurred in the State of New York, Kings County, and the City of New York is subject to personal jurisdiction in Supreme Court of the State of New York, Kings County, and because the amount in recovery exceeds the jurisdictional levels of all lower courts.

PARTIES

9. Plaintiff Annmarie John-Huggins is a resident of the State of New York, and currently resides in Kings County.

10. At all times alleged herein, Defendant City of New York was a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

11. At all times alleged herein, Defendants P.O. Christian Villacis, (SHIELD # 05464); P.O. Jane Doe #1-2, and P.O. John Doe #1-17, were New York City Police Officers employed with the 67th Precinct, located in Kings County, New York or other as yet unknown NYPD assignment, who violated plaintiff's rights as described herein.

12. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

13. On April 28, 2017, at approximately 5:20 a.m., at and in the vicinity of 590 Parkside Avenue, Brooklyn, New York, defendants P.O. Christian Villacis, (SHIELD # 05464); P.O. Jane Doe #1-2, and P.O. John Doe #1-17, entered plaintiff's home and unlawfully arrested plaintiff without either consent, an arrest warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime.

14. Prior to plaintiff's arrest, plaintiff was asleep in her bedroom.

15. Plaintiff awoke when defendant police officers broke down the door to her home and entered wearing masks and carrying shields.

16. Plaintiff screamed when a police officer with a flashlight on his helmet pointed a gun at her.

17. Plaintiff put her hands in the air and asked the police officers "why are you all in my apartment?"

18. P.O. Jane Doe #1 stood approximately 5'8" tall, had blonde hair, a medium build, and appeared to be a Hispanic female.

19. When plaintiff told P.O. Jane Doe #1 that plaintiff was scared and asked why the police broke down her door, P.O. Jane Doe #1 told plaintiff that an officer would speak to her and that plaintiff had to go to the precinct.

20. P.O. Jane Doe #1 told plaintiff, who was wearing a nightgown and no other clothing, that she had to change her clothes to come to the precinct.

21. Plaintiff told P.O. Jane Doe #1 that she does not take her clothes off in front of other people. P.O. Jane Doe #1 responded "take off your clothes now because you have to go to the precinct."

22. Plaintiff complied with P.O. Jane Doe #1's orders and changed her clothes in front of P.O. Jane Doe #1.

23. P.O. John Doe #1 stood approximately 5'2" tall, weighing approximately 180 pounds, and appeared to be a Hispanic male. P.O. John Doe #1 had the key to plaintiff's apartment and told plaintiff he would lock the door when the police leave.

24. The defendants did not display a search warrant to plaintiff.

25. Defendants arrested, handcuffed, transported plaintiff to the 67th Precinct for arrest processing.

26. When plaintiff returned to her residence after her arrest to find her home demolished valuable property, including but not limited to jewelry, laptop computer, electronics, and cell phones, were either destroyed or missing.

27. Plaintiff was released from custody after the Kings County District Attorney's Office declined to prosecute her case.

GENERAL ALLEGATIONS

28. The individual defendants acted in concert committing the above-described illegal acts toward plaintiff.

29. Plaintiff did not violate any law, regulation, or administrative code; commit any criminal act; or act in a suspicious or unlawful manner prior to or during the above incidents.

30. At no time prior to, during or after the above incidents were the individual defendants provided with information, or in receipt of a credible or an objectively reasonable complaint from a third person, that plaintiff had violated any law, regulation, or administrative code; committed any criminal act; or acted in a suspicious or unlawful manner prior to or during the above incidents.

31. The defendants acted under pretense and color of state law and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of her rights.

32. As a direct and proximate result of defendants' actions, plaintiff experienced personal and physical injuries, loss of liberty, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

33. Plaintiff is entitled to receive punitive damages from the individual defendants because the individual defendants' actions were motivated by extreme recklessness and indifference to plaintiff's rights.

FIRST CLAIM FOR RELIEF

(For Unlawful Strip Search Under New York Constitution Against the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17)

34. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

35. Defendants' strip search of plaintiff was illegal and improper because no police officer had probable cause to believe plaintiff committed a crime.

36. Moreover, no police officer had reasonable suspicion to believe that the plaintiff was hiding illegal items under her clothes.

37. At the time of plaintiff's strip search, plaintiff had not been arraigned before a judge nor been admitted to a correctional facility.

38. Accordingly, the defendants are liable to plaintiff for defendants' unlawful strip search under the New York State Constitution Article I, § 12.

SECOND CLAIM FOR RELIEF

(For Unreasonable Search of Plaintiff's Home Under New York Constitution Against the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17)

39. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

40. Defendants the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17 unreasonably searched plaintiff's home by unnecessarily damaging, destroying, or failing to secure plaintiff's property.

41. Accordingly, the defendants are liable to plaintiff for defendants' unreasonable search of her home under the New York State Constitution Article I, § 12.

THIRD CLAIM FOR RELIEF

(For Unlawful Seizure Under New York Constitution Against the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17)

42. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

43. Defendants the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17 unlawfully seized plaintiff without a warrant, probable cause, or consent.

44. Accordingly, defendants are liable to plaintiff for defendants' unlawful seizure of plaintiff under the New York State Constitution Article I, § 12.

FOURTH CLAIM FOR RELIEF

(For Intentional Infliction of Emotional Distress Against the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17)

45. Plaintiff incorporate the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

46. Defendants the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17 intentionally inflicted emotional harm upon the plaintiff.

47. The defendants' actions against the plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

48. Defendants the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17 breached a duty owed to plaintiff that either unreasonably endangered plaintiff's physical safety, or caused plaintiff to fear for her own safety.

49. Accordingly defendants the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17 are liable to plaintiff under New York state law for intentional infliction of emotional distress upon plaintiff.

FIFTH CLAIM FOR RELIEF

(For Negligent Performance of Duties Against the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17)

50. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

51. The individual police officers, acting within the scope of their employment, negligently discharged their duties and thereby caused plaintiff to sustain the injuries and deprivations aforementioned.

SIXTH CLAIM FOR RELIEF

(For False Arrest under State Law Against the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17)

52. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

53. As a result of defendants' aforementioned conduct, the plaintiff was subjected to an illegal, improper, and false arrest. The plaintiff was taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated. In the above-mentioned actions, defendants acted intentionally, willfully, with malice, and without probable cause, privilege or consent.

54. Plaintiff was conscious of her confinement.

55. As a result of the foregoing, plaintiff's liberty was restricted in filthy and degrading conditions for an extended period of time, plaintiff was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

56. By virtue of the foregoing, the defendants deprived the plaintiff of her rights under the law of the State of New York.

SEVENTH CLAIM FOR RELIEF

(For Respondeat Superior Against the City of New York)

57. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

58. The individual defendants, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17, were acting within the scope of their employment as New York City Police Officers when they committed the above described acts against plaintiff.

59. Accordingly, the City of New York is therefore vicariously liable under New York State law for the aforesaid torts.

EIGHTH CLAIM FOR RELIEF

(42 U.S.C. § 1983- Fourth Amendment Violation for Illegal Strip Search Against the Individual Officer Defendants)

60. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

61. Defendants' strip search of plaintiff was illegal and improper because no police officer had probable cause to believe plaintiff committed a crime.

62. Moreover, no police officer had reasonable suspicion to believe that the plaintiff was hiding illegal items under her clothes.

63. At the time of plaintiff's strip search, plaintiff had not been arraigned before a judge nor been admitted to a correctional facility.

64. Accordingly, the defendants deprived the plaintiff of her Fourth Amendment rights under the United States Constitution to be free from unreasonable searches of her person and are liable to plaintiff under 42 U.S.C. §1983.

NINTH CLAIM FOR RELIEF

(42 U.S.C. § 1983- Fourth Amendment Violation For Unreasonable Search of Plaintiff's Home Arrest Against the Individual Officer Defendants)

65. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

66. Defendants the City of New York, P.O. Christian Villacis, P.O. Jane Doe #1-2, and P.O. John Doe #1-17 unreasonably searched plaintiff's home by unnecessarily damaging, destroying, and failing to secure plaintiff's property.

67. Accordingly, the defendants deprived the plaintiff of her Fourth Amendment rights under the United States Constitution to be free from unreasonable searches of her home and are liable to plaintiff under 42 U.S.C. §1983.

TENTH CLAIM FOR RELIEF

(42 U.S.C. § 1983 -Fourth Violation for False Arrest Against the Individual Officer Defendants)

68. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

69. As a result of defendants' aforementioned conduct, the plaintiff was subjected to an illegal, improper, and false arrest. The plaintiff was taken into custody and caused to be falsely imprisoned, detained, confined, and incarcerated. In the above-mentioned actions, defendants acted intentionally, willfully, with malice, and without probable cause, privilege or consent.

70. Plaintiff was conscious of her confinement.

71. As a result of the foregoing, plaintiff's liberty was restricted in filthy and degrading conditions for an extended period of time, plaintiff was put in fear for her safety, was humiliated and subjected to handcuffing, and other physical restraints, without probable cause.

72. By virtue of the foregoing, the defendants deprived the plaintiff of her Fourth Amendment rights under the United States Constitution to be free from unreasonable seizures of her person and are liable to plaintiff under 42 U.S.C. §1983.

ELEVENTH CLAIM FOR RELIEF

Municipal Liability
(Against Defendant City)

73. Plaintiff incorporates the allegations contained in the previous paragraphs of this Complaint as if fully set forth herein.

74. The City's continuing failure to deter police misconduct has led to ever increasing numbers of lawsuits for repeated misconduct by the same officers, same units, and same precincts. In the fiscal year of 2012, there were 2,004 tort cases commenced against the New York City Police Department, up from 1,425 tort cases commenced for the fiscal year of 2008.¹ The City of New York has paid at least \$80 million for torts against the New York City Police Department since the fiscal year of 2008, peaking in fiscal year of 2009 when it paid out more than \$117 million.¹ In the past ten years, the City of New York has paid nearly a billion dollars on lawsuits brought against the NYPD.²

75. The widely held assumption is that civil rights lawsuits deter police misconduct. "The purpose of § 1983 is to deter state actors from using the badge of their authority to deprive individuals of their federally guaranteed rights and to provide relief to victims if such deterrence fails." Wyatt v. Cole, 504 U.S. 158, 161, (1992) citing Carey v.

¹ Fiscal 2013 Preliminary Mayor's Management Report for the New York City Police

² "NYPD gives quite the payday; AP report reveals police have dolled out \$1B to resolve lawsuits," by Associated Press Writers Colleen Long and Jennifer Peltz via Daily News wire Report, <http://www.nydailynews.com/new-york/nypd-payday-ap-report-reveals-police-dolled-1b-resolve-lawsuits-article-1.189671>, October 15, 2010 last visited on January 27, 2014.

Piphus, 435 U.S. 247, 254-257, (1978). “As far as we know, civil liability is an effective deterrent [to civil rights violations], as we have assumed it is in other contexts.” See Hudson v. Michigan, 547 U.S. 586, 598 (2006) citing Correctional Services Corp. v. Malesko, 534 U.S. 61, 70 (2001) and Nix v. Williams, 467 U.S. 431, 446, (1984). “It is almost axiomatic that the threat of damages has a deterrent effect (citation omitted) surely particularly so when the individual official faces personal financial liability.” Carlson v. Green, 446 U.S. 14, 21, (1980), citing Imbler v. Pachtman, 424 U.S. 409, 442, and footnote 6 (1976).

76. However, the City of New York has isolated NYPD officers like defendant police officers from accountability for civil rights lawsuits by indemnifying officers who violate the constitutional rights of citizens, and, as a result, is preventing civil rights lawsuits from having any deterrent value to the City, the NYPD or its officers. Civil rights lawsuits against police officers have no impact on the officers’ careers, regardless of the expense to the City of the officers’ lawsuit liability, even after multiple lawsuits. In 1999, former Comptroller Alan Hevesi reported that there was a “a total disconnect” between the settlements of even substantial civil claims and police department action against officers.³ This “total disconnect” between officers’ liability and NYPD discipline, results in a system where the City pays vast sums to settle false arrests, but the NYPD does nothing to investigate nor address the underlying causes of such false arrests or officers who have incurred large sums of civil rights liability.

77. The City Council, Government Operations Committee, despite being

³ Bob Hennelly’s WNYC report, “Amid City Budget Crisis, New Scrutiny on Millions in NYPD Settlements” from June 8, 2011: <http://www.wnyc.org/articles/its-free-country/2011/jun/08/amid-city-budget-grappling-new-scrutiny-millions-nypd-settlements/>, last visited on January 27, 2014.

alerted at a City Council hearing on December 12, 2009, and on other occasions, to the obvious problem of officers and precincts with a disproportionate responsibility for civil rights lawsuit liability, has failed to take action to hold officers or precincts accountable. It has likewise failed to hold an investigative hearing into what extent specific officers, units and precincts are disproportionately responsible for New York City civil rights lawsuits.

78. Nevertheless, the City has repeatedly resisted attempts to catalog even basic information gleaned from civil rights lawsuits that could improve training, leadership, supervision, and discipline in the NYPD. The City's deliberate indifference towards the contents of civil rights litigation, individual officers repeatedly named in lawsuits, incidents repeatedly occurring in the same division, and patterns of misconduct that arise in civil rights litigation has caused the constitutional violations of excessive force and false arrest suffered by the plaintiff.

79. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct or to calculate the total liability of an individual officer or of a precinct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected, problematic supervision or leadership at the precinct level goes ignored, and repeated misconduct by individual officers goes unaccounted for. Even occasional judicial findings that officers have testified incredibly are not reported routinely to the police department or any oversight agencies.

80. All of the aforementioned has created a climate where police officers and detectives lie to prosecutors and in police paperwork and charging instruments, and testify falsely, with no fear of reprisal. "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City

Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration-through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department-there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged." See Colon v. City of New York, et al, 2009 WL 4263362 (E.D.N.Y.) (Weinstein, J.).

81. In Floyd v. City of New York, 08-cv-01034-SAS-HBP, Judge Scheindlin found that the City acted with "deliberate indifference toward the NYPD's practice of making unconstitutional stops and conducting unconstitutional frisks" and adopted "a policy of indirect racial profiling by targeting racially defined groups for stops based on local crime suspect data." (Opinion and Order, dated August 12, 2013, P.13).

82. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff's civil rights, without fear of reprisal.

83. Plaintiff has been damaged as a result of the deliberate indifference of the Defendant City.

WHEREFORE, Plaintiff demands a jury trial and judgment and compensatory damages, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action against all defendants; punitive damages in an amount to be determined at trial as and for the above-stated

causes of action against the individual defendants; together with costs and disbursements of this action.

Dated: New York, New York
July 24, 2018



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Attorney for Plaintiff
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VERIFICATION

I, ANNMARIE JOHN-HUGGINS, state under the oath, that I am the deponent and plaintiff in this action, and that the pleading is true to the knowledge of the deponent, except as to matters, alleged on information and belief, and that as to those matters I believe it to be true.


ANNMARIE JOHN-HUGGINS

STATE OF NEW YORK)

: SS:

COUNTY OF NEW YORK)

On the 24th day of JULY, 2018, before me personally came and appeared ANNMARIE JOHN-HUGGINS to me known and known to me to be the individual described in and who executed the foregoing instrument, and who duly acknowledged to me that she executed the same.


NOTARY PUBLIC

STEVEN E. LYNCH
NOTARY PUBLIC, State of New York
No. 02LY6261890
Qualified in Kings County
Commission Expires May 29, 2018 *20*